



FEDERAL BUREAU OF INVESTIGATION

Quantico RPMS/FMU



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION IN ACCORDANCE WITH:
41 U.S.C. § 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

Requisition Number: SHOP-PR-25-000405

1. Identification of the agency and contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation, Facilities Acquisition Unit (FAU), has prepared this justification for other than full and open competition on behalf of the FBI Academy Facilities Maintenance Unit (FMU).

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

The FBI Academy has made significant investments in the facilities and its complex technical systems which are critical to the functionality and productivity of the overall mission. This requested service will proactively serve to protect the substantial investment through a program of planned service tasks by Siemens trained technical staff with proprietary access. The period of performance for this service will be a base year plus one option. The acquisition is anticipated to be firm-fixed price, sole source.

3. A description of the supplies or services required to meet the agency's needs.

The FBI Academy's FMU requires both supplies and services in fulfillment of this requirement. The services required to meet the FBI's needs include the monitoring and replacing of current functional and/or obsolete components currently utilized by the existing Siemens Building Automation System.

The Siemens System currently controls the several devices that provide the entire Lab and various other buildings throughout the complex with their HVAC needs. Without the proper

maintenance on these devices and the system that maintains them, the HVAC systems could fail and cause major interruptions of many mission initiatives located at the FBI Academy.

All the devices are operated by the Siemens System which is a proprietary system that requires Siemens technicians with exclusive access to work on it.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. §3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, “Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.”

5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

Contractors must be trained and certified by Siemens to work with their proprietary systems. Siemens offers specialized certification programs for professionals working with their BAS, such as:

- **Siemens Certified Professionals:** Technicians or engineers must hold certifications specific to Siemens Building Technologies (e.g., **Siemens Desigo CC** or **Siemens Apogee** certifications), which ensure that the technicians have a deep understanding of the systems, software, hardware, and troubleshooting protocols.
- **Siemens Technical Training:** Ongoing technical training is essential for contractors to stay updated on the latest developments in Siemens BAS technology, including new system upgrades and patching procedures that all Siemens technicians are required to keep current.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies. .

Siemens is the only provider that can meet the critical components replacement requirements. There are no substitutes. In accordance with FAR 5.2, this justification for other than full and open competition will be posted to the governmentwide point of entry at <https://www.sam.gov> considering the proposed contract action does not meet exceptions described in 5.202

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

In accordance with FAR 15.402, the Contracting Officer will ensure that all supplies and services

ordered under this contract are procured at a fair and reasonable price.

8. A description of the market research conducted and the results.

Market research was conducted by through past historical data and speaking with Siemens BAS providers.

9. Any other facts supporting the use of other than full and open competition.

With Siemens Building Automation System (BAS) contracts, the use of other than full and open competition is justified by factors such as proprietary technology, specialized customization, and system compatibility that only Siemens Technicians are authorized to support. Siemens' solutions are tailored to specific client needs, and third-party vendors lack the necessary expertise and access to proprietary tools. Additionally, using Siemens ensures compatibility, security, and ongoing lifecycle support, including maintenance and software updates. Given Siemens' proven track record and the critical nature of the systems, these factors make this exclusive contract the only reliable and low-risk option.

10. A listing of any sources that expressed a written interest in the acquisition.

N/A

11. A statement of any actions the agency may take to remove or overcome any barriers to competition, if subsequent acquisitions are anticipated.

The FBI will continue to examine the market in the future for alternative solutions or new sources before executing any subsequent acquisitions for the same requirements.